Legislative Effectiveness in Multiparty Presidential Systems: Evidence from Mexico's Chamber of Deputies

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What explains legislative effectiveness in multiparty presidential systems? We explore the role of the president in a multiparty legislature without a majority party and develop several theoretical expectations regarding ties to the president's party, the role of opposition parties, and the importance of controlling certain committees to explain legislative effectiveness. Drawing upon data from the Mexican Chamber of Deputies and a new measure of legislative effectiveness adaptable to other legislatures, we argue that legislators who share partisanship with the president are often constrained by the executive branch. Thus, legislators from governing parties are generally less effective when it comes to their own legislative initiatives. Deputies from opposition parties do not face these same restrictions, and consequently, are generally more effective at navigating their own proposals through the legislative process. These findings extend to the committee level.

What explains legislative effectiveness in multiparty presidential systems? In most presidential democracies, the president is the primary lawmaker and agenda setter (e.g., Pereira, Power, and Rennó 2008), yet we know very little about the relative significance of bills produced by individual legislators, nor their ability to advance these bills through the legislative process. This gap in the literature is important to fill, as several studies suggest that legislatures in systems where the executive dominates the lawmaking process are growing increasingly powerful and consequential (Calvo 2014; Jiménez Badillo 2006; Melo and Pereira 2013; Rey 2021).

In most legislatures in presidential systems, there is no majority party, committee chairs are shared across multiple parties, committees do not function as gatekeepers, and legislative careers are often short (Calvo and Sagarzazu 2011; Kerevel 2015; Samuels 2003). Thus, seemingly obvious explanations which might suggest that legislators from the majority party, or those with more experience, are more effective, may hold little explanatory power. Moreover, existing work is mostly limited to a focus on legislative productivity and has not examined the salience of bills produced by legislators (e.g., Alemán and Calvo 2010; Calvo 2014). We seek to understand which legislators are more or less likely to be able to draft and pass bills with significant policy content.

Here, we explore the role of the president in a multiparty legislature and develop several theoretical expectations about the effectiveness of legislators related to their ties to the president's party or the opposition. Drawing upon the Mexican Chamber of Deputies, we argue that presidential copartisans are often constrained in their behavior as the executive branch has an overarching interest in ensuring that copartisan legislative proposals fit within the president's agenda and bargain with the opposition to gain passage of executive bills. Legislators from the president's party may see their bills coopted by the president or blocked if they contradict presidential priorities. Thus, legislators from governing parties are generally less effective when it comes to their own initiatives. In contrast, opposition deputies do not face these same restrictions, while at the same time they provide crucial votes to pass the president's legislative agenda. Presidents may allow the opposition to push their own priorities or grant them credit-claiming opportunities on major presidential initiatives. Thus, opposition deputies are generally more effective at

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navigating their own proposals through the legislative process since they face fewer constraints and can exchange votes for passage of their initiatives.

Mexico is an excellent case to address legislative effectiveness in a comparative context. During the period we cover here, 1997–2018, no party held a majority of seats in the chamber. As a result, multiple parties in every legislative term chair different committees and all parties are proportionally represented on all committees. Second, during this same period, consecutive reelection of deputies is banned. This allows us to examine the effects of prior legislative experience on contemporary effectiveness independent of seniority. Finally, the loss of majority control in 1997, in a political system where the executive previously dominated the legislative process for decades through extraconstitutional powers over the governing party, rather than through formal constitutional powers (Weldon 1997), provides an illuminating example of presidential bargaining with the opposition in a multiparty legislature over policy.

LEGISLATIVE EFFECTIVENESS IN COMPARATIVE PERSPECTIVE

Understanding which legislators are more effective at lawmaking is at the core of democratic representation. Yet, we lack sufficient explanations to understand variation in legislative effectiveness in most presidential systems. In most presidential democracies, there is no majority party in the legislature and executives have important roles in sponsoring their own bills and shaping the agenda (Calvo and Sagarzazu 2016). Studies from Argentina suggest that presidential copartisans are more likely to see their bills passed, although these works do not consider the salience of bills (Alemán and Calvo 2010; Calvo 2014). However, other recent work finds that partisanship plays little role in understanding variation in effectiveness in Brazil (Rey 2021). Furthermore, in multiparty legislatures, committee control is often divided among multiple parties, and other pre-floor agenda-setting institutions exist that shape the legislative agenda on the floor (Calvo 2014; Pereira and Mueller 2004). However, we lack an understanding of how this context translates into greater or lesser effectiveness for members of governing and opposition parties.

This study draws on prior research and interviews with legislators and congressional staff to develop two hypotheses regarding the role of partisanship and affiliation with the president's party to explain variation in effectiveness, which we detail below. Then, we draw upon original data on bill sponsorship to test our hypotheses in the Mexican Chamber of Deputies.

The role of the president in lawmaking

Without a majority party, the president and multiple parties within the legislature must negotiate with each other over the legislative agenda. However, it is unclear to what extent the role of shared partisanship with the president is likely to play in legislative effectiveness. One perspective suggests that in this scenario, the legislative weight of the president over the agenda is enhanced, since while the largest party in the legislature loses some of its agenda-setting prerogatives, the president's legislative and agenda-setting powers do not change (Aleman and Calvo 2010). Nevertheless, the president's party is likely to still be more successful compared to other parties since not only must opposition parties negotiate among themselves and with the president's party to pass their agenda on the floor, they must also contend with the president's veto and other agenda-setting powers. In contrast, the president's party not only is more likely to share policy preferences with the president but also faces fewer hurdles in seeing its bills become law compared to opposition parties.

However, another perspective on the role of the president suggests that executives need to manage legislative coalitions in multiparty settings in order to pursue their legislative agenda (Chaisty and Chernykh 2017; Hiroi and Renno 2014; Martinez-Gallardo 2012; Raile, Pereira, and Power 2011). Presidents have multiple tools to form stable and ad hoc legislative coalitions, such as allocating cabinet portfolios to coalition partners or granting access to pork (Raile et al. 2011). However, not all presidents manage legislative coalitions through the allocation of cabinet positions (Casar 2016; Chaisty and Chernykh 2017; Martinez-Gallardo 2012). Thus, executives may need to engage in policy compromise with the opposition to pass their legislative agenda (Arnold, Doyle, and Wiesehomeier 2017).

When executives need to engage in policy compromise, presidents and legislative party leaders may need to negotiate which legislative proposals from both the president's and the opposition's agenda will receive support. The lack of majority party control weakens some of the procedural advantages often held by the largest party in many legislatures, which is likely to create more opportunities for minority and opposition parties (Alemán and Calvo 2010; Ballard and Curry 2021). In this context, members of the president's party may face additional constraints as their own legislative proposals are not only likely to need to conform to the president's agenda but are also likely to take a back seat to the president's own proposals in the negotiation of policy coalitions with opposition parties. For presidents and their copartisans in the legislature, the legislative success of the president is often of paramount importance, as the potential for gridlock in

multiparty settings is often high and can lead to presidents being removed from office early (Negretto 2006).

Existing work on legislative effectiveness in some parliamentary systems suggests that opposition legislators may be more productive and introduce more individual bills compared to backbenchers from parties of the governing party or governing coalition (Akirav 2016, 2020; Shomer 2009). In cases of minority government in parliamentary systems, opposition legislators may be especially effective given the difficulty government parties have in securing legislative majorities to pass their bills (Bräuninger and Debus 2009). Thus, executives in parliamentary and presidential systems who need to engage in policy compromise with the opposition to secure support for their primary initiatives may provide substantial opportunities for opposition legislators to pursue their own, individual policy goals while limiting the ability of governing party legislators to do the same. Below, we draw on numerous interviews with Mexican legislators, legislative staff, and ministerial liaisons with the legislature to support this perspective.

Compared to other Latin American presidents, the Mexican executive holds weak formal powers (Lehoucq et. al. 2005; Santos, Pérez-Liñán, and García Montero 2014; Vázquez Ferrel 2017). Mexican presidents have exclusive power to propose the budget, can introduce bills, and can veto bills in full or in part. Under the president's partial veto powers, the president may amend any bill passed by the legislature. The proposed changes to the bill must then return to the legislature, where a two-thirds majority is required to approve the president's changes or to override the president's partial veto. Since 2012, presidents have the power to identify four preferential bills per year, which means preferential bills must be reviewed and voted upon in each chamber within 30 days. Presidents are prohibited from identifying constitutional reforms as preferential bills. Unlike other Latin American presidents, Mexican presidents lack decree powers (Alemán and Tsebelis 2016).

Even without legislative majorities, Mexican presidents still hold important advantages in the legislative process through other mechanisms used to influence the agenda. These mechanisms include the delegation of favored bills to particular legislators (Nacif 2004), negotiating candidacies with other party leaders (Béjar 2014) and appointing congressional liaisons to the chamber to oversee the advancement of their program during the most critical phases of the legislative process. As a result, the Mexican Congress still approves most presidential bills. Casar (2013) finds that compared to other Latin American legislatures without majorities, the Mexican Congress approves a very high proportion of executive bills in coalition with other parties.

For example, after major congressional setbacks, President Vicente Fox (2000–2006) used his powers to modify the internal rules of the Interior Ministry (Secretaría de Gobernación) to create the General Legislative Liaison (Enlace Legislativo) office in 2002. With regard to the liaison figure, a legal staff coordinator for the Vicente Fox administration said:

> As soon as [Humberto] Aguilar Coronado was appointed as liaison, he became the main communication vessel between the president and legislators from all parties. . . . The first measure Aguilar adopted was to record all the bills introduced in both chambers and place government lobbyists in congress. . . . Based on those reports, he could decide which of the bills presented in the chamber favored the president´s positions on different issues. . . . Backed by Santiago Creel [Interior Minister], Aguilar ordered which bills to support or which ones to stop, and a majority was easily built around them. But with the 2003 midterm elections, we lost deputies and therefore, bargaining power. . . . That made things tougher because almost every item of the president´s agenda had to be mediated with other caucuses and we even had to accept some opposition bills that were not completely aligned, but were as close as possible, with the political goals of Fox´s program. Our job in the second half of Fox´s mandate was more of blocking threatening bills than that of supporting favorable bills coming from congress.[1]

In addition to the establishment of the legislative liaison office, the PAN (Partido Acción Nacional) also made organizational changes to facilitate its work as a governing party and coordinate a coherent program. The Miguel Estrada Foundation had been proposed in the early 1990s by elite party members as an organizational device to professionalize legislative work. The foundation emerged in 2004, and from the beginning, it served to

> adjust the contents of bills presented by PAN federal deputies to make them coherent with presidential plans; . . . even when deputies were not forced to submit to us their bills for review, almost all of them

1. Interview with legal staff coordinator of the federal government (2000–2005), February 6, 2019. All interviewees granted verbal consent to use the content of the interview for academic purposes. Some interviewees wished to remain anonymous. Quotations are translated from Spanish by the authors.

> agreed to send them to us for practical reasons. Every week, the party whip received a briefing of which bills had passed the foundation's revision. And those were the proposals the party was prone to support or negotiate with other parties. So the Foundation's approval was a first requirement for a legislator if they wanted to receive support from the government and see their bill move on in the process.[2]

During the Fox government, the legislative liaison helped to negotiate the presidential agenda with other political forces. The president also relied on their party organization to extend their legislative powers by transforming *panista* legislator bills into extensions of the executive portfolio, and limiting the number of PAN bills that might have been contrary to the government's agenda. According to a former director of this organization, "After being revised by the foundation, bills coming from PAN deputies were more likely to advance through the legislative labyrinth with the help of the liaison and the governmental bureaucracy who always preferred to push pre-checked bills rather than other proposals that did not have the approval of the Estrada Foundation. These actions were designed to reduce the risk of presidential defeats in congress, [and] to enhance the number of subjects that the government could reform."[3]

President Fox also pressured PAN deputies to drop bills that he opposed. For example, Fox sought to promote the domestic auto industry and ban the illegal importation of cars from the United States. "At the same time, some PAN deputies started to present bills to facilitate the entrance of such cars (*autos chocolate*), since it was a demand from their local voters. . . . In this case, . . . the federal government made PAN deputies respect the government agenda. There were some cases in which legislators. . . . would continue to exercise their right to sponsor bills . . . but most of them were dismissed in committee."[4]

In contrast to Fox, there was less central coordination during Calderón's presidency (2006–12, PAN). Instead, cabinet ministers hired their own personnel to pursue bills of interest to them, regardless of which party sponsored the initial bill. In an interview with one of these ministerial liaisons, this lack of coordination often led to conflicts between ministries. This liaison stated that "most of the time there were no agreements so these bills stalled in committee. Except for energy, treasury and security issues, the president and the cabinet minister tried to intervene as little as possible in these discussions."[5] In addition, President Calderón would "delegate the drafting of a bill to one or many legislators from his circle of confidants in the party. Then, he and his cabinet team measured the reaction that the bill generated both in the chamber and in the media. And only then, the president decided if he would draft a similar bill, push the one that was already in congress, or let it die in the chamber."[6] Only in a few policy areas, such as domestic security and energy reform, did the president try to exercise some control over congressional decisions.

When Enrique Peña Nieto (PRI, Partido Revolucionario Institucional, 2012–18) took office, he reinstated the figure of the General Legislative Liaison and authorized each ministry to hire a team of specialized lobbyists, which were placed under the supervision of one or two legislative liaisons per ministry. This strategy was designed to enforce an agreement (Pacto por México) between the government and PAN and PRD (Partido de la Revolución Democrática) opposition party leaders in order to consolidate the major structural reforms of Peña Nieto's agenda. According to one of these legislative liaisons,

> The Interior Minister started a very complex system by placing lobbyists on almost every committee and compiling every bill introduced to both chambers. . . . Every two months, the General Liaison and the Secretary of Government called us for meetings with the other liaisons and there we had to communicate to the Liaison which were the bills each of us was interested in. . . . The Liaison would make a decision on whether or not to support a certain bill. In case a conflict between two ministries arose from a bill, the differences were aired in front of the Liaison and the Interior Minister, who would mediate to reach a final solution which everybody stuck to.[7]

The above discussions reveal that the lack of majority control in the legislature did not strip policy-making power away from the executive. By spreading sponsorship activity through the portfolios of copartisan legislators, using the party structure to guarantee coherence between the partisan and the presidential agenda, or by recurring to the resources

2. Interview with Aminadab Pérez Franco, former general director of the Miguel Estrada Iturbide Foundation, October 5, 2012.

3. Interview with Aminadab Pérez Franco, October 5, 2012.

4. Interview with Aminadab Pérez Franco, October 5, 2012.

5. Interview with legislative liaison of the economy ministry during the Calderón and Peña administrations, November 26, 2018.

6. Interview with legislative liaison of the economy ministry, November 26, 2018.

7. Interview with legislative liaison of the economy ministry, November 26, 2018.

of the federal bureaucracy to oversee committees, recent Mexican presidents were able to promote their policy goals in the legislative process. Legislators from the party in government played an important role in this strategy by deferring some of their sponsoring activity to the presidential agenda, by molding their own bills to make them compatible with the executive's program, and by blocking legislation that did not adhere to presidential policy goals.

The role of opposition parties

Relatively weak formal presidential powers have led presidents to look to opposition parties as allies to guarantee the approval of their legislative agendas since 1997 (Vázquez Ferrel 2017). Opposition parties have the opportunity to add or subtract votes to presidential bills, negotiate for modifications of executive initiatives, or bargain for their own policy reforms (Nacif 2006). One federal deputy stated: "I think in a congress without one dominant party, everyone has the chance to make changes to federal legislation. It just depends on how well a legislator plays their cards, but the party that they belong to does not make the difference, because everyone is important, even those legislators that belong to . . . small parties can do a good job lobbying their proposals."[8] Another legislator expressed a similar perspective, stating that "it is naive to think that a bill will move on just because it is a good proposal or a necessary reform coming from an important party member. If a sponsor, no matter which party they are from, wants to see their initiative move along, they must follow the bill and not fall asleep beside it. Sometimes the sponsor must garner support in their party and even in other parties, go to ministries, be in touch with the civil society, convince everyone."[9]

In contrast to this agency-based vision, opposition party deputies may also be effective because their cooperation is needed to advance other agenda items. A congressional staffer who saw the process from the perspective of the executive during the Peña Nieto administration, noted:

> Legislators from parties other than the government can see some of their bills approved not because they are skillful or because their bills are technically correct or necessary to be enacted. It is simply because the president of the committee allows it. Approving opposition bills is a way to reduce pressure and maintain the governance of a committee. When a legislator from the opposition behaved in such a way that hindered agreements or that defied the authority of the chair, then the chair granted them some benefits like approving their bills or some proposals from their partisan colleagues. . . . So, committee chairs, always with prior authorization from the caucus leader, support some of the opposition bills that revolve around subjects that do not compromise the government.[10]

Similarly, opposition party deputies have been known to use their ability to swing the balance on close votes in exchange for preferential treatment of their own legislative proposals: "Parties like Partido Verde, Nueva Alianza, Movimiento Ciudadano or Partido del Trabajo, would tilt the scales in many close floor and committee votes. Close votes whether in committee or on the floor were the best thing that could happen to small parties because they used their vote as a bargaining chip whether to help legislation pass or to defeat it. . . . In exchange for supporting one side or the other, these small parties exchanged their vote for positive committee reviews."[11]

Even legislators who proposed more far-reaching reforms were sometimes successful at passing significant bills. A legislative staffer from the PRD, the largest opposition party that presented some of the more radical bills during the 1997–2018 period, said:

> Our job was to lay those types of bills on the table. I mean what were we there for. To change things. That´s clear. To criticize and make people know there are other ways of making politics. The problem for us as opposition always was that committees sent our bills to the gutter without even reading them. But we never stopped trying and that is how we reached important reforms in economic policy, social welfare, and electoral equality. Even with those few big changes that PRI and PAN allowed us to make, I believe we helped make a better democracy.[12]

Presidents also often concede important parts of their agenda to members of the opposition in order to generate support for substantial reforms. While ultimately unsuccessful, President Calderón was very interested in promoting

8. Interview with Deputy Miguel Angel Chico Herrera (MORENA), April 7, 2018.

9. Interview with Senator Salvador López Brito (PAN), July 3, 2014.

10. Interview with legislative liaison of the social development ministry, December 11, 2018.

11. Interview with Edgar Emeterio Carpio, technical secretary in the Chamber of Deputies (1996–99) and the Senate (2006–12) and legislative advisor for PRD in the Chamber of Deputies (2015–18), February 7, 2019.

12. Interview with Edgar Emeterio Carpio, February 7, 2019.

major electoral reforms and reforms to the energy sector. To do so, he gave support to bills promoted by PRI legislators on the same topic in order to build a coalition in support of reform.[13] Similarly, President Peña Nieto successfully passed a major constitutional reform of the energy sector in 2013. As part of the legislative process, the president allowed the PAN to present their own legislative proposal on energy reform to gain PAN support (Expansión Política 2020). In these examples, members of the opposition are able to see highly salient bills advance through the legislative process as the result of presidential support for the bill and the president's need to build coalitions in support of their agenda.

The above testimonies suggest that the absence of majority control in a multiparty legislature provides a number of opportunities for entrepreneurial legislators, and the need to form majorities around certain legislative initiatives allows opposition parties to exchange votes for policy. Opposition parties are still constrained since their legislative agendas are subject to the approval of governing parties and the president. While previous work finds that opposition deputies sponsor more bills (Bárcena Juárez 2017), we suggest that they are also likely to be successful strategic actors within this multiparty environment.

Overall, this qualitative evidence suggests that deputies from the president's party are much more constrained in their abilities to push their own agendas separate from the president. In addition, presidents need the votes of opposition legislators to pass their legislative agenda, and thus opposition deputies are able to gain support for their own initiatives in exchange. As a result, we expect to find that opposition deputies are generally more effective legislators as long as they propose legislation which is not completely contrary to the president's agenda.

> **H1.** *Presidential parties hypothesis:* Deputies from the president's party will be less effective than deputies from opposition parties.

THE ROLE OF PARTIES IN COMMITTEES

In most multiparty presidential systems, party leaders negotiate with each other over which parties will get to chair which committees, with the largest parties often getting control over the more important ones (Calvo 2014). The allocation of committee seats and committee chairs is often done proportionally based on the percentage of seats held by each party in the legislature, regardless of whether or not a single party holds a majority of seats. Some work suggests that in the absence of a majority party, committees become more permissive institutions and delegate more gatekeeping responsibility to other pre-floor agenda-setting institutions in charge of scheduling plenary sessions (Calvo and Sagarzazu 2011). Thus, the party affiliation of the committee chair is unlikely to be particularly important since negotiation over which bills make it to the floor happens through informal negotiations between sponsors, committee chairs, party leaders, and other chamber leaders. For example, when no party holds a majority of seats, Calvo and Sagarzazu (2011) find that minority parties become much more successful at reporting their bills out of committee in Argentina. Similarly, Finocchiarro and Johnson (2010) find that the largest party on the floor or in committee is not more or less successful at moving bills out of committee onto the floor than other parties in Costa Rica, Venezuela, or Colombia.

The gatekeeping rights of committees in many legislatures are rather weak compared to what is often associated with the powers of committees in the US Congress (Alemán 2006; Crombez, Groseclose, and Krehbiel 2006). Committees with strong gatekeeping rights are able to prevent changes to the status quo by blocking legislation, even if majorities in the legislature prefer a different policy. However, the evidence from multiparty legislatures without majority parties suggests that committees do not function as gatekeeping institutions (Alemán 2006; Calvo 2014; Finocchiarro and Johnson 2010).

In Mexico, committees are not autonomous from party leaders in the primary pre-floor agenda-setting institutions, the Chamber Directorate (Mesa Directiva, MD) and the committee of caucus leaders (Junta de Coordinación Política, JCP) (Alemán 2006). Committee chairs are chosen at the beginning of the legislative period by their caucus leaders in the JCP, and the number of chairs that a party holds is proportional to its floor presence. Once caucus leaders in the chamber agree upon which committees will be chaired by which parties, caucus leaders name committee chairs. Caucus leaders also retain the right to remove or replace any committee member, including the chair, temporarily or permanently (Béjar 2009). Thus, committee chairs are unlikely to operate independently of their caucus leader. Current federal deputy and former senator Juan Carlos Romero Hicks (PAN) stated, when asked if he thought deputies benefited from having their bills sent to a committee chaired by a copartisan: "I believe the important thing is not who chairs the committee but what the bill is about because committees are somewhat like a mini-plenary, so it is rare things are changed between the committee and the floor."[14]

13. Interview with Adolfo Toledo Infazón, PRI Senator (2006–12), March 29, 2014.

14. Interview with Federal Deputy Juan Carlos Romero Hicks, February 26, 2019.

In addition, while congressional norms restrict legislation from reaching the floor without a previous committee review and a majority vote of support from its members (*dictamen*) (Béjar 2009), the MD and JCP have discretion over the assignment of bills to particular committees, and committees that fail to review legislation in a timely manner are unable to block this legislation from being considered on the floor. The MD and JCP control the consideration of items on the plenary agenda and can schedule a vote on a bill that has not been reviewed by a committee. A former congressional staffer and adviser to the MD emphasizes the power of the caucus leaders over the agenda: "When I was in committee, I realized no bill passes unless there is an agreement of interests. Not just anyone's interests; the interests of the caucus leaders. . . . If the caucus leaders are not interested in a subject, that bill simply doesn't pass."[15]

The weak gatekeeping powers of legislative committees in the Mexican Congress suggest two conclusions regarding the role of committees in explaining legislative effectiveness. First, the partisanship of the committee chair is unlikely to matter in explaining which bills make it out of particular committees. If committees had strong gatekeeping rights, one might expect committee chairs to privilege the bills of copartisans over others. However, since committees do not serve a gatekeeping role, then deputies will not benefit from sending bills to committees chaired by copartisans. Second, partisan trends in legislative effectiveness should be apparent at the committee level. Opposition deputies are expected to be more effective than governing party deputies. Thus, one should observe that opposition deputies are more effective than governing party deputies not only in opposition-controlled committees, but also in committees controlled by the governing party.

> **H2.** *Party in committee hypothesis*: Opposition party deputies will be more effective than governing party deputies within committees, regardless of which party chairs the committee.

LEGISLATIVE PROCESS IN MEXICO

During their three-year terms, Mexican federal deputies can draft as many bills (*iniciativas*) in any national policy area they wish, except the federal budget and the yearly revenue law, which are the exclusive purview of the executive. Once a legislator introduces a bill, it is submitted to the MD, which in turn forwards the bill to one or more committees. Most commonly, the MD submits bills to a single committee. After receiving a bill, standing committees are expected to draft a report (*dictamen*) within 45 days. Reports are collective legislative acts through which one or more committees elaborate a written opinion to endorse or reject bills.

When a report has been approved by a majority of the committee, it goes back to the MD, where it is scheduled for a first floor reading. In the immediate next ordinary session, the report is read for a second time and then set for discussion and floor voting. If a committee report does not receive enough floor votes (which is rare), it is defeated. However, if the floor votes to modify some portion of the report, the MD can send the report back to committee and wait for a new review. However, if the report passes a floor vote, it must be submitted to the other chamber. Three outcomes may occur in the review chamber: (*a*) approval of the report as received, (*b*) rejection of the entire proposal, or (*c*) suggestion of changes to particular items.

After a bill has undergone all of the previous steps, the executive has 10 days to publish the new law, return it to the chamber of origin with partial changes, or veto the bill, in which case, the original committee must draft a new report. If the new report gathers a two-thirds supermajority in both chambers, the executive´s veto is overridden and the president must publish the bill. Some proposals, such as bills that attempt to change internal rules, are not submitted to the review chamber or to the executive. After receiving a positive committee review, these bills only need a simple floor majority to pass.

MEASURING LEGISLATIVE EFFECTIVENESS IN MEXICO

To measure effectiveness, we draw on the legislative effectiveness score (LES) created by Volden and Wiseman (2014). However, their measure is not easily applicable to most other legislatures. Here, we briefly describe how we adapted their measure to the Mexican context solely using information from the bills themselves. In the appendix, we provide more details for those interested in adapting their own measure to other legislatures.

The Volden and Wiseman LES is based on how many bills each legislator introduces, the substantive importance of these bills, and how these bills advance through the legislature. There are two components to the LES: the relative importance of the policy changes proposed in a bill and how far along the bill advances in the legislature. The most difficult part of the LES to translate to other legislatures is measuring the importance of individual bills. Volden and Wiseman (2014, 20–21) establish a typology that categorizes bills as (1) commemorative, (2) substantive, or (3) significant

15. Interview with Maya Prado Monroy, technical adviser to the MD, Chamber of Deputies, 62nd Legislature, August 6, 2014.

and substantive. Significant and substantive bills are classified as such if they appeared in the *Congressional Quarterly Almanac*. Commemorative bills are largely symbolic bills that establish holidays, commemorate individuals, mint coins, or name public buildings, for example. All other bills are considered substantive bills.

The major challenge for applying the LES to other legislatures stems from the absence of public or private agencies in other parts of the world that classify bills according to their relevance. We propose a significance index as an alternative way to classify bills in terms of their importance based only on the characteristics of the bills themselves. Our index is made up of three dimensions: (*a*) the level of coordination a bill requires to be enacted as a law, (*b*) the impact the bill may have, and (*c*) the number of juridical items (length) it seeks to change.

Coordination refers to the number of decision-making bodies needed for a bill to become law. Constitutional reforms require a two-thirds majority vote in both chambers, presidential support, and support from a majority of state legislatures. Bills proposing or modifying secondary laws must be supported by simple majorities in both chambers, as well as supported by the president. Bills that seek to modify internal chamber rules and administrative procedures require only a simple majority in the legislative chamber in which it was proposed. The different levels of coordination required to pass a bill suggest that implementing a constitutional reform has a high degree of difficulty whereas changing internal chamber rules is relatively simple. Therefore, our significance index assigns the highest possible score (3 points) to constitutional amendments, 2 points for secondary law reform proposals, and 1 point for internal administrative procedures.

The second dimension captures a bill's impact and focuses on how a proposed reform affects relations between citizens and the state or among the powers of the state. These bills usually reform or create new rights, liberties, responsibilities, or prerogatives for citizens in the social, economic, juridical, or political spheres. When a bill attempts to modify the organization of the political regime or change the obligations of the state with respect to the economy or the polity, it is considered a profound change. These bills with the largest impact relate to obligations of the state to its citizens and include bills on human rights, civil rights, transparency, environmental rights, habeas corpus, and *amparo* rights, the regulation of national issues (e.g., welfare, strategic economic plans, national policy programs, use of natural resources, national security), as well as modifications in prerogatives relating to government branches (including the creation/elimination of federal ministries), state agencies, constitutionally autonomous organs, all local congresses and every level of government. Initiatives with this ample (regime) reach receive 3 points in our index.

Proposals attempting to change the internal operations of the government by modifying or establishing courses of action for governmental programs in the federal public administration receive 2 points. Under this category, we place bills trying to modify internal processes of governmental agencies, procedural rules of congress and the judiciary, parastatal agencies, constitutionally autonomous organs, local congresses, and subnational government offices as well as tax reform and the regulation of different sectors of the economy. Here, we also consider those bills directed to a region or a group of citizens with shared characteristics as well as the regulation of citizen relations (civil, labor, mercantile, criminal, and agrarian law). Finally, those bills that propose symbolic changes receive 1 point. In this category, we include changes to committee names, modifications of words or phrases of law, changes to the use of the anthem and flag, citizen awards, minting of coins, and defining holidays.[16]

The third component in the index measures the number of items to be modified in a bill. Blondel (1970) proposed a method for analyzing the impact that a bill may have by measuring the length of the physical document presented. His argument was that when a bill attempts to modify many items of a certain law or group of laws, the level of controversy caused by the bill, as well as the population affected, tends to be larger. The most profound change a bill can make is when it tries to create a new law or to delete one which is under operation. We draw upon the hierarchical organization of the laws in the Mexican legal system to distinguish between bills that create or delete entire laws, modify large parts of a law, and those that propose relatively minor changes.[17] Bills that propose new laws, delete existing laws, reform entire books, titles, chapters, sections, or more than six articles receive 3 points on this dimension.[18] Bills seeking to change one to five articles of one or more laws receive 2 points. And bills trying to modify any number of paragraphs, subparagraphs, fractions, or subsections of one or more laws receive 1 point.

In table 1, we present a summary of our significance index. Our single measure considers all three dimensions of a bill's significance by adding up the scores across each dimension

16. Appendix A details the coding rules we used regarding the specific subject of each bill.

17. See app. A for a detailed explanation of the hierarchical structure of Mexican laws.

18. The average number of articles modified by bills between 1997 and 2018 was 5.78. We define initiatives trying to change any number of articles above the average as lengthy bills.

Table 1. Significance Index

	Dimensions of Index		
Points	Coordination	Impact	Length
3	Constitutional reform	Regime changing or universal rights reform	Creation or deletion of a law Modification of six or more articles.
2	Secondary law modifications	Targeted transformations	Changes in one to five articles
1	Changes to internal congressional rules	Symbolic changes	Changes in minor segments of laws
	Summary Score		
3–4	Minor bill		
5–7	Ordinary bill		
8–9	Significant bill		

to create a summary score. Thus, each bill receives a score ranging from 3 to 9. As there are no theoretical cues which suggest that one dimension captures the significance of a legislative proposal more than others, we do not weight dimensions differently. Then, similar to Volden and Wiseman (2014), we divide the index into three categories, where bills with a score of 3–4 on the index are considered minor bills, those with a score of 5–7 are considered ordinary, and bills with a score of 8–9 are considered significant. In appendix B, we show that our results are robust to using the full variation of the significance index rather than collapsing significance into three categories.

The second major component in developing a legislative effectiveness score is to code each bill based on how far it advances in the legislative process. We classify bills based on five different stages of advancement. These five stages include (1) bills that did not receive any consideration, (2) bills that received action in committee, (3) bills that were voted upon on the floor of the originating chamber, (4) bills that were voted upon in the chamber of revision, and (5) bills enacted into law.

Altogether, the three levels of significance and the five procedural stages create a total of 15 indicators very similar to Volden and Wiseman's (2014) LES score. From these 15 indicators we create a unique summary score for each Mexican federal deputy. We use identical weights for our significance index as Volden and Wiseman and then normalize our score from 0 to 10 where the legislator with the highest individual score is coded 10 (see app. B).

METHODOLOGY

To test our hypotheses, we gathered data on bill sponsorship and the progress of each bill during the term in which it was sponsored for seven legislative terms in Mexico's Chamber of Deputies, from 1997 to 2018. Our unit of analysis is the individual deputy in each term. While consecutive reelection is prohibited during the time period studied here, roughly 15% of deputies do repeat every other term.[19]

Our dependent variable is the legislative effectiveness score (LES) described above. To test the first hypothesis, we use the regular LES as our dependent variable. For hypothesis 2 we calculate separate scores for each deputy based on bills sent to (1) committees chaired by PRI, (2) committees chaired by PAN, (3) committees chaired by PRD, (4) committees chaired by other parties.[20] Since our dependent variable is continuous, we use ordinary least squares (OLS) regression.

Our primary independent variable is party affiliation to capture presidential copartisanship and affiliation with the opposition. PRI deputies are classified as presidential copartisans when the PRI held the presidency (Zedillo, 1997–2000; Peña Nieto, 2012–18), and PAN deputies are classified as presidential copartisans when the PAN held the presidency (Fox, 2000–2006; Calderón, 2006–12). For the opposition, we group deputies into two categories: major opposition parties and minor opposition parties. PRI deputies are coded as members of a major opposition party when the PAN holds the presidency and vice versa. PRD deputies are coded as

19. In our data, 3,750 deputies appear only once. An additional 337 deputies repeat at least once.

20. We code the partisanship of the first committee for bills sent to multiple committees. Interviews with technical secretaries suggest that most of the major review of the bill happens in the first committee named by the MD (Isaac Bueno Soria, and José Luis Sánchez Barragán, Social Development Committee, LX Legislature, May 6, 2009; Edgar Emeterio Carpio, Senate Legislative Studies Committee, LX Legislature, February 7, 2019).

members of a major opposition party across all terms. All other parties are coded as minor opposition parties.

In addition to our primary explanatory variable of interest, we include a number of controls that are likely to influence a deputy's legislative effectiveness. Past research on Mexico using bill passage rates as the dependent variable suggests that leadership positions within the Mexican chamber enhance the effectiveness of legislators (Kerevel and Atkeson 2013). Here, we include four variables to capture leadership positions: deputies with committee chair positions, deputies with committee secretary positions, caucus leaders, and deputies who serve on the MD.

We also control for legislative experience, as several studies find that more experienced legislators are more effective (e.g., Volden and Wiseman 2014, 2018). Experience is measured as a count of the number of years of prior legislative experience a deputy had prior to entering the chamber in all legislative offices.

Studies of the US Congress find women to be more effective legislators than men, although these results are limited to women in the minority party (Volden and Wiseman 2018; Volden, Wiseman, and Wittmer 2013). This prior research finds that women in the majority party in the US Congress tend to be less or as effective as men. These studies suggest that women tend to be more collaborative than men in legislative settings, which gives minority party women an advantage as they seek to build multiparty support for their bills. In a context without majority parties, we might expect women across all parties to be more effective as all legislators need to collaborate across parties to achieve legislative success. We include a dichotomous variable for female legislators to account for this possibility.

Finally, we include two additional control variables specific to the Mexican context that may influence legislative effectiveness. First, we include a variable that captures whether or not a deputy was elected in a single-member district (SMD) or through a proportional representation (PR) list, as Mexico uses a mixed-member electoral system. Different methods of selection and election may lead to varying incentives to focus on lawmaking or constituency service. Second, we control for deputies elected as alternates. All deputies are elected along with an alternate (*suplente*) who can take the primary (*propietario*) deputy's seat temporarily or permanently in the case of a leave of absence, resignation, or death. Alternates are less experienced and serve only short periods of time. Thus, we expect alternates to be less effective.

RESULTS

Hypothesis 1 suggests that opposition party deputies are more effective than deputies from the president's party. Before turning to a more rigorous empirical analysis, we first examine the party affiliation among the top 10 most effective deputies across each of the seven legislative terms studied here. We find that presidential copartisans only make up 13 out of the 70 most effective deputies, and in no term do more than three deputies affiliated with the president's party enter the top 10. Among these 70 deputies, 54% come from major opposition parties. Seventeen of the 70 are from the PRD, the largest, consistent opposition party across all terms. An additional 27% come from minor opposition parties, primarily from Citizen's Movement (MC), the Green Party (PVEM), and the New Alliance Party (PANAL).

In table 2, model 1, we predict a deputy's legislative effectiveness score based on whether or not they share partisanship with the president. In figure 1*A*, we present the main effects graphically. We find that opposition party deputies are generally more effective than presidential copartisans, although this effect is much stronger for members of smaller opposition parties. When the PRI holds the presidency, we also find that members of major opposition parties are also more effective than PRI deputies, although when the PAN holds the presidency, deputies of major opposition parties are generally as effective as presidential copartisans. In appendix B, we show that model 1 is robust to the inclusion of legislative term fixed effects. In model 2, we also find that our results are robust if we only include the PRD as opposition, the principal opposition party to PRI and PAN. PRD deputies are about twice as effective as PRI deputies when the PRI holds the presidency, and about 1.3 times as effective as PAN deputies when the PAN holds the presidency.

In figures 1*B*–1*E*, we show that our findings are generally consistent across all four presidencies.[21] Under President Zedillo, deputies from the major opposition parties (PAN, PRD) were about eight times more effective than PRI deputies.[22] During President Fox's term, deputies from major opposition parties (PRI, PRD) were about 1.5 times as effective as PAN deputies, while members of minor opposition parties were about 2.5 times as effective as presidential copartisans. Under President Calderón, deputies from minor opposition parties were more than twice as effective as PAN deputies, while we find little difference in the effectiveness between members of the primary opposition parties

21. See table C1 for models used to generate fig. 1.

22. We also find under Zedillo that minor opposition parties were more effective, although the very small number of deputies from PVEM and PT during this term makes it difficult to have much confidence in this result.

Table 2. The Influence of the President on Legislative Effectiveness in the Mexican Chamber of Deputies, 1997–2018

	Full Model (1)		Only PRD as Opposition (2)		Deputies Who Served in Opposition and Government (3)		Legislative Significance Only (4)		Legislative Process Only (5)	
	b	SE.	*b*	SE	*b*	SE	*b*	SE	*b*	SE.
Major opposition party	−.31	.06					−.52	.07	−.44	.07
Presidential party (PRI)	−.46	.06	−.22	.04	−.14	.08	−.74	.07	−.71	.07
Presidential party (PAN)	−.35	.06	−.10	.04	−.15	.08	−.67	.07	−.60	.07
PR deputy	.07	.03	.01	.04	−.16	.09	.03	.03	.01	.03
Female	.07	.03	.10	.04	.09	.11	.11	.03	.11	.04
Alternate (*suplente*)	−.28	.03	−.29	.03	−.15	.15	−.36	.03	−.47	.03
Caucus leader (JCP)	1.29	.35	1.13	.53	.79	.67	.98	.31	.95	.29
Chamber directorate (MD)	.02	.06	.05	.08	−.20	.09	.07	.06	.03	.06
Legislative experience (years)	.00	.01	.01	.01	.02	.01	.00	.01	−.01	.01
Committee chair	.20	.05	.19	.07	.03	.11	.13	.05	.14	.06
Committee secretary	.14	.03	.08	.04	.00	.09	.19	.03	.16	.03
Constant	.57	.06	.36	.05	.44	.10	.90	.07	.97	.07
N	4,472		2,481		335		4,472		4,472	
R^2	.10		.06		.06		.13		.12	

Note. OLS regression. Robust standard errors clustered by deputy.

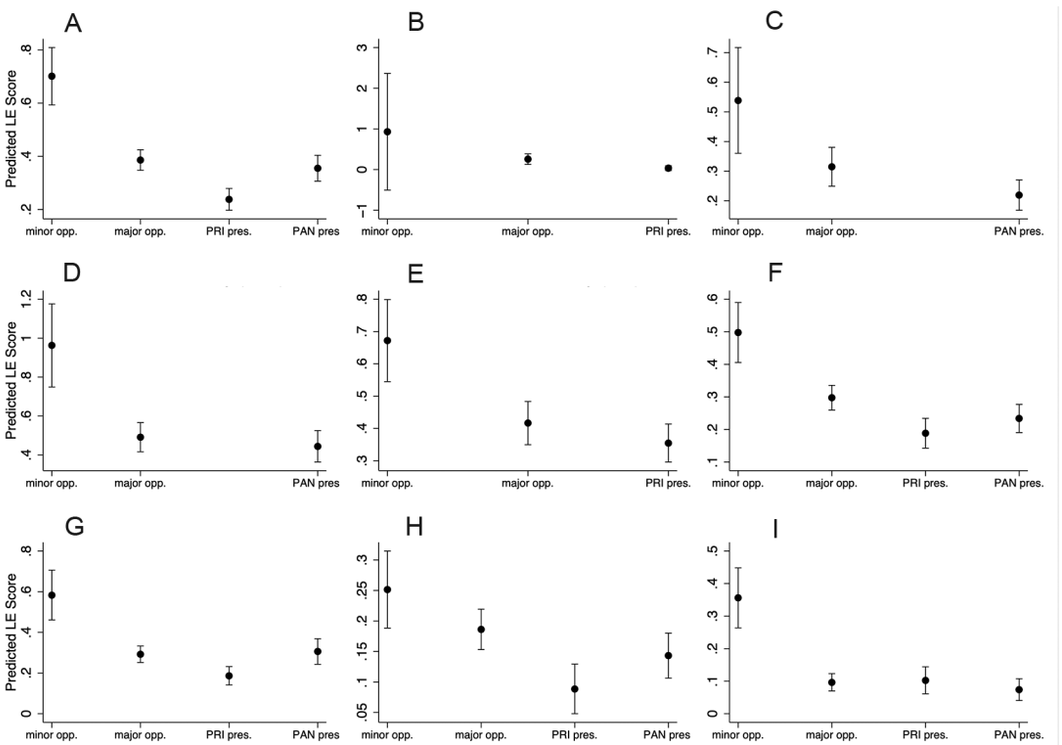

Figure 1. Predicted legislative effective score for government and opposition deputies. *A*, Full model. *B*, Zedillo presidency (PRI). *C*, Fox presidency (PAN). *D*, Calderón presidency (PAN). *E*, Peña Nieto presidency (PRI). *F*, PRI committees. *G*, PAN committees. *H*, PRD committees. *I*, Other party committees.

(PRI, PRD) and presidential copartisans from the PAN. Similarly, during the presidency of Enrique Peña Nieto we find that members of the major opposition parties (PAN, PRD) are only about 1.2 times as effective as PRI deputies, while members of smaller opposition parties are nearly twice as effective as presidential copartisans.

Hypothesis 2 suggests that the findings from model 1 will hold across committees, regardless of which party chairs the committee. To test this hypothesis, we run four separate models where the dependent variable is the legislative effectiveness score for bills sent to PRI committees, PAN committees, PRD committees, and committees controlled by other minor parties. Empirical results are available in table C1, but the substantive effects are presented in figures 1*F*–1*I*. Overall, we find that opposition deputies are more effective than governing party deputies across all committees. In PRI and PRD committees, presidential copartisans are less effective than deputies from other opposition parties. In PAN-controlled committees, we do find that *panista* presidential copartisans are as effective as opposition deputies from PRI and PRD, although they are still less effective than opposition deputies from other minor parties. We generally find a similar trend in committees controlled by minor parties in figure 1*I*. These results lend support to the idea that opposition party deputies are able to use their leverage in committees to get their own legislation out of committee in exchange for supporting executive bills.

Briefly turning to the results of the other variables in the model, we find that women are generally more effective lawmakers than men. In table B3, we show that women are more effective regardless of their governing or opposition status. Our results also show deputies with leadership positions to generally be more effective than backbenchers, while alternates are significantly less effective deputies. There is no evidence that deputies with more legislative experience are more effective, and the effect of being nominated through PR has inconsistent effects across models in table 2.[23]

ROBUSTNESS CHECKS

The evidence that opposition deputies are more effective than presidential copartisans is consistent across multiple models. To ensure these results are robust, we limit the sample to only those deputies from the PRI and PAN who repeat across terms that served at least one term as part of the governing party and one term in opposition. This presents a hard test of our hypothesis, since one might expect the same deputy of a large party to be similarly effective across time. In total, 158 deputies from either party fit these criteria, with a handful serving three or four terms across the 1997–2018 period. In model 3, table 2, we present the results of this restricted model and continue to find strong support for hypothesis 1. PRI or PAN deputies, when in opposition, are about 1.5 times as effective compared to when they are part of the governing party. These results suggest that the same deputies who served in both government and opposition are less effective when affiliated with the president.

It is possible that governing party deputies are just less likely to present significant legislation and leave it to the president, while deputies from both the opposition and the government are equally capable of navigating the legislative process. To address this possibility, we separate the two components of the effectiveness score into separate measures that consider the significance of a deputy's bills and how successful deputies are at navigating their bills through the legislative process. We then predict the significance of the legislation sponsored by individual deputies (model 4, table 2) and how successful deputies are at navigating their bills through the legislative process (model 5, table 2). We find that opposition deputies are more likely to sponsor more significant legislation than presidential copartisans and are also more successful at moving their bills through the legislature. In appendix B, we also explore several different ways to measure significance and success at navigating bills through the legislative process. Using multiple measures, we continue to find substantial support for the findings presented here.

CONCLUSION

By accounting for the significance of individual bills, and their advancement through the legislative process, our findings cast doubt on previous comparative work which suggests that presidential copartisans are always more effective legislators. While previous studies of multiparty presidential systems recognize a role for the opposition in the lawmaking process, our results suggest that the effectiveness of opposition deputies has been understated. We find that opposition deputies not only sponsor more significant legislation but are also better able to navigate their bills through the legislative process compared to members of the governing party.

There are several complementary mechanisms which help explain the empirical findings presented here, drawn from our interviews with legislators and staff. Presidents are the primary lawmakers, although they nearly always need to form legislative support coalitions to advance their agenda. Through executive agenda-setting powers, presidents can

23. In results not shown here, we do not find any within-party differences between PR and SMD deputies. The greater effectiveness of PR deputies in model 1 is due to the fact that deputies from minor parties are more effective, and nearly all minor party deputies are elected by PR.

constrain copartisans in the legislature in two ways: (1) by co-opting legislative initiatives of individual deputies or (2) by limiting the advancement of bills contrary to the president's policy goals. Presidents also help enhance the effectiveness of members of the opposition in order to gain votes for presidential initiatives in two ways: (1) by throwing support behind the legislative priorities of opposition parties that are not in direct contradiction of the president's agenda or (2) by allowing members of the opposition to sponsor major policy initiatives as part of the president's agenda to ensure opposition party support for executive-led reforms.

While the empirical results are limited to Mexico, our findings challenge conventional wisdom about legislative effectiveness, and more work should be undertaken that considers the relative substance of the bills being advanced by opposition and government legislators. In several multiparty presidential systems, unlike in Mexico, presidents form stable coalitions through the allocation of cabinet portfolios. Future research should examine the variation in effectiveness across parties within the governing coalition and parties in the opposition. In addition, the Mexican executive is constitutionally weaker than many other counterparts in the region. Future research should examine how the dynamics of policy compromise between presidents and legislators vary based on legislative tools available to presidents to shape the agenda.

It is important to note that our measure of legislative effectiveness focuses solely on the bills produced by legislators. Other actions by legislators, such as government legislators working to pass presidential initiatives, or blocking bills opposed by the president, are not considered in our measure of legislative effectiveness. While our measure does capture much of a legislator's lawmaking activities, it does not capture the entire scope of their job. Future comparative work may need to consider how to capture effectiveness at promoting partisan or presidential priorities in the legislative process beyond just the individual lawmaking activities of legislators. Indeed, in contexts where the career of an individual politician is more closely tied to the fortunes of presidents and parties, and less to their individual reputations, identifying and understanding different forms of effectiveness may be necessary.

We find that women lawmakers are more effective legislators than men, regardless of their relationship to the president's party. While previous work in the United States finds that only women in the minority party are more effective legislators than men, here we find that the multiparty context provides an institutional environment for women's legislative success across all parties. While it is beyond the scope of this article to explain why women are more effective than men in the Mexican case, future research should explore this finding in more detail.

We also find that previous explanations of legislative effectiveness in the US Congress do not travel well to other contexts. Past work has found that majority party status, seniority, experience, and possession of leadership positions are key explanations for identifying which legislators are more or less effective. In the context of a multiparty legislature where no party holds a majority of seats, our findings differ substantially. The only similarity we find is that deputies with leadership positions are more effective. We also do not find legislative experience to be a particularly important factor in explaining effectiveness. Across Latin American legislatures, deputies serve very few consecutive terms. Given that legislative experience does not appear to be very important, future work should focus on what other background characteristics deputies bring to the legislature that better explain variation in effectiveness.

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